

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIDAVIT OF
ELIZABETH RANKER**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.
-----XSTATE OF NEW YORK)
)ss.:
COUNTY OF SUFFOLK)**ELIZABETH RANKER**, being duly sworn, deposes and says:

1. I have personal knowledge of and/or have directly observed events relating to the above-entitled action.

2. I reside at 308 Grand Central Avenue, Amityville, New York 11701 and live near plaintiffs Thomas DeSousa and Diane DeSousa, as well as defendant Richard A. Calvagno II ("Calvagno").

3. Since in or around 2020, on several occasions, I have witnessed Calvagno recklessly speed down my street in his high-performance Dodge Charger Hellcat.

4. Calvagno's vehicle is also unreasonably and obnoxiously loud. Even though I live several houses down, there are mornings where I can hear Calvagno start and rev the engine of his vehicle from inside my home.

5. After numerous instances of having witnessed Calvagno recklessly speed down my street, I finally had enough and contacted the police concerning an incident that occurred on February 19, 2022.

6. On such date, I was parked in front of my home while sitting inside my car facing north. I heard a car coming from behind me around the curve in the road. This car came from around the bend swerving but it was on the wrong side of the road. It blew past me at such speed that my car rocked. It then proceeded to blow the stop sign as he traveled north on Grand Central Avenue. I then realized that this car was Calvagno's Dodge Hellcat.

7. Disgusted by his blatant and reckless disregard for the rules of the road and the safety of others in the neighborhood, I immediately contacted the police because I was concerned that someone, especially a child, could be injured or even worse, killed, by his behavior.

8. When I reported Calvagno to the police, they informed me that they were already aware of his reckless driving. In fact, the police advised me they had already ticketed him a few times.

9. While the police promised they would do their best to catch him, it is obvious they are powerless to stop it. Since making this report, Calvagno has continued to operate in the same dangerous and reckless manner, completely undeterred.

10. While walking south on my street at approximately 6:45 A.M. Calvagno was watching me as I walked past his house. Immediately upon passing his car, he started it. The car revved upon starting and it was so loud, I jumped and turned to see if the car had moved unto the street. That experience was frightful for me.

11. I, Elizabeth Ranker, affirm this 5th day of June, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

BRENDA LOMBARDO
Notary Public, State of New York
No. 01FR0025408
Qualified in Suffolk County
Commission Expires March 28, 2026


Elizabeth Ranker

